

One-Shot

James Blish



Project Gutenberg

One-Shot

James Blish

Project Gutenberg

The Project Gutenberg eBook of One-Shot

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: One-Shot

Author: James Blish

Illustrator: H. R. Van Dongen

Release date: October 11, 2007 [eBook #22958]

Language: English

Other information and formats: www.gutenberg.org/ebooks/22958

Credits: Produced by Greg Weeks, Stephen Blundell and the Online
Distributed Proofreading Team at <http://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK ONE-SHOT ***



ONE-SHOT

You can do a great deal if you have enough data, and enough time to compute on it, by logical methods. But given the situation that neither data nor time is adequate, and an answer must be produced ... what do you do?

BY JAMES BLISH

Illustrated by van Dongen

On the day that the Polish freighter *Ludmilla* laid an egg in New York harbor, Abner Longmans ("One-Shot") Braun was in the city going about his normal business, which was making another million dollars. As we found out later, almost nothing else was normal about that particular week end for Braun. For one thing, he had brought his family with him—a complete departure from routine—reflecting the unprecedentedly legitimate nature of the deals he was trying to make. From every point of view it was a bad week end for the CIA to mix into his affairs, but nobody had explained that to the master of the *Ludmilla*.

I had better add here that we knew nothing about this until afterward; from the point of view of the storyteller, an organization like Civilian Intelligence Associates gets to all its facts backwards, entering the tale at the pay-off, working back to the hook, and winding up with a sheaf of background facts to feed into the computer for Next Time. It's rough on the various people who've tried to fictionalize what we do—particularly for the lazy examples of the breed, who come to us expecting that their plotting has already been done for them—but it's inherent in the way we operate, and there it is.

Certainly nobody at CIA so much as thought of Braun when the news first came through. Harry Anderton, the Harbor Defense chief, called us at 0830 Friday to take on the job of identifying the egg; this was when our records show us officially entering the affair, but, of course, Anderton had been keeping the wires to Washington steaming for an hour before that, getting authorization to spend some of his money on us (our clearance status was then and is now C&R—clean and routine).

I was in the central office when the call came through, and had some difficulty in making out precisely what Anderton wanted of us. "Slow down, Colonel Anderton, please," I begged him. "Two or three seconds won't make that much difference. How did you find out about this egg in the first place?"

"The automatic compartment bulkheads on the *Ludmilla* were defective," he said. "It seems that this egg was buried among a lot of other crates in the dump-cell of the hold —"

"What's a dump cell?"

"It's a sea lock for getting rid of dangerous cargo. The bottom of it opens right to Davy Jones. Standard fitting for ships carrying explosives, radioactives, anything that

might act up unexpectedly."

"All right," I said. "Go ahead."

"Well, there was a timer on the dump-cell floor, set to drop the egg when the ship came up the river. That worked fine, but the automatic bulkheads that are supposed to keep the rest of the ship from being flooded while the cell's open, didn't. At least they didn't do a thorough job. The *Ludmilla* began to list and the captain yelled for help. When the Harbor Patrol found the dump-cell open, they called us in."

"I see." I thought about it a moment. "In other words, you don't know whether the *Ludmilla* really laid an egg or not."

"That's what I keep trying to explain to you, Dr. Harris. We don't know what she dropped and we haven't any way of finding out. It could be a bomb—it could be anything. We're sweating everybody on board the ship now, but it's my guess that none of them know anything; the whole procedure was designed to be automatic."

"All right, we'll take it," I said. "You've got divers down?"

"Sure, but—"

"We'll worry about the buts from here on. Get us a direct line from your barge to the big board here so we can direct the work. Better get on over here yourself."

"Right." He sounded relieved. Official people have a lot of confidence in CIA; too much, in my estimation. Some day the job will come along that we can't handle, and then Washington will be kicking itself—or, more likely, some scapegoat—for having failed to develop a comparable government department.

Not that there was much prospect of Washington's doing that. Official thinking had been running in the other direction for years. The precedent was the Associated Universities organization which ran Brookhaven; CIA had been started the same way, by a loose corporation of universities and industries all of which had wanted to own an ULTIMAC and no one of which had had the money to buy one for itself. The Eisenhower administration, with its emphasis on private enterprise and concomitant reluctance to sink federal funds into projects of such size, had turned the two examples into a nice fat trend, which ULTIMAC herself said wasn't going to be reversed within the practicable lifetime of CIA.

I buzzed for two staffers, and in five minutes got Clark Cheyney and Joan Hadamard, CIA's business manager and social science division chief respectively. The titles were

almost solely for the benefit of the T/O—that is, Clark and Joan do serve in those capacities, but said service takes about two per cent of their capacities and their time. I shot them a couple of sentences of explanation, trusting them to pick up whatever else they needed from the tape, and checked the line to the divers' barge.

It was already open; Anderton had gone to work quickly and with decision once he was sure we were taking on the major question. The television screen lit, but nothing showed on it but murky light, striped with streamers of darkness slowly rising and falling. The audio went *cloonck ... oing, oing ... bonk ... oing ...* Underwater noises, shapeless and characterless.

"Hello, out there in the harbor. This is CIA, Harris calling. Come in, please."

"Monig here," the audio said. *Boink ... oing, oing ...*

"Got anything yet?"

"Not a thing, Dr. Harris," Monig said. "You can't see three inches in front of your face down here—it's too silty. We've bumped into a couple of crates, but so far, no egg."

"Keep trying."

Cheyney, looking even more like a bulldog than usual, was setting his stopwatch by one of the eight clocks on ULTIMAC's face. "Want me to take the divers?" he said.

"No, Clark, not yet. I'd rather have Joan do it for the moment." I passed the mike to her. "You'd better run a probability series first."

"Check." He began feeding tape into the integrator's mouth. "What's your angle, Peter?"

"The ship. I want to see how heavily shielded that dump-cell is."

"It isn't shielded at all," Anderton's voice said behind me. I hadn't heard him come in. "But that doesn't prove anything. The egg might have carried sufficient shielding in itself. Or maybe the Commies didn't care whether the crew was exposed or not. Or maybe there isn't any egg."

"All that's possible," I admitted. "But I want to see it, anyhow."

"Have you taken blood tests?" Joan asked Anderton.

"Yes."

"Get the reports through to me, then. I want white-cell counts, differentials, platelet counts, hematocrit and sed rates on every man."

Anderton picked up the phone and I took a firm hold on the doorknob.

"Hey," Anderton said, putting the phone down again. "Are you going to duck out just like that? Remember, Dr. Harris, we've got to evacuate the city first of all! No matter whether it's a real egg or not—we can't take the chance on it's *not* being an egg!"

"Don't move a man until you get a go-ahead from CIA," I said. "For all we know now, evacuating the city may be just what the enemy wants us to do—so they can grab it unharmed. Or they may want to start a panic for some other reason, any one of fifty possible reasons."

"You can't take such a gamble," he said grimly. "There are eight and a half million lives riding on it. I can't let you do it."

"You passed your authority to us when you hired us," I pointed out. "If you want to evacuate without our O.K., you'll have to fire us first. It'll take another hour to get that cleared from Washington—so you might as well give us the hour."

He stared at me for a moment, his lips thinned. Then he picked up the phone again to order Joan's blood count, and I got out the door, fast.

A reasonable man would have said that I found nothing useful on the *Ludmilla*, except negative information. But the fact is that anything I found would have been a surprise to me; I went down looking for surprises. I found nothing but a faint trail to Abner Longmans Braun, most of which was fifteen years cold.

There'd been a time when I'd known Braun, briefly and to no profit to either of us. As an undergraduate majoring in social sciences, I'd taken on a term paper on the old International Longshoreman's Association, a racket-ridden union now formally extinct—although anyone who knew the signs could still pick up some traces on the docks. In those days, Braun had been the business manager of an insurance firm, the sole visible function of which had been to write policies for the ILA and its individual dock-wallopers. For some reason, he had been amused by the brash youngster who'd barged in on him and demanded the lowdown, and had shown me considerable lengths of ropes not normally in view of the public—nothing incriminating, but enough to give me a better insight into how the union operated than I had had any right to expect—or even suspect.

Hence I was surprised to hear somebody on the docks remark that Braun was in the city over the week end. It would never have occurred to me that he still interested himself in the waterfront, for he'd gone respectable with a vengeance. He was still a professional gambler, and according to what he had told the Congressional Investigating Committee last year, took in thirty to fifty thousand dollars a year at it,

but his gambles were no longer concentrated on horses, the numbers, or shady insurance deals. Nowadays what he did was called investment—mostly in real estate; realtors knew him well as the man who had *almost* bought the Empire State Building. (The *almost* in the equation stands for the moment when the shoestring broke.)

Joan had been following his career, too, not because she had ever met him, but because for her he was a type study in the evolution of what she called "the extra-legal ego." "With personalities like that, respectability is a disease," she told me. "There's always an almost-open conflict between the desire to be powerful and the desire to be accepted; your ordinary criminal is a moral imbecile, but people like Braun are damned with a conscience, and sooner or later they crack trying to appease it."

"I'd sooner try to crack a Timkin bearing," I said. "Braun's ten-point steel all the way through."

"Don't you believe it. The symptoms are showing all over him. Now he's backing Broadway plays, sponsoring beginning actresses, joining playwrights' groups—he's the only member of Buskin and Brush who's never written a play, acted in one, or so much as pulled the rope to raise the curtain."

"That's investment," I said. "That's his business."

"Peter, you're only looking at the surface. His real investments almost never fail. But the plays he backs *always* do. They have to; he's sinking money in them to appease his conscience, and if they were to succeed it would double his guilt instead of salving it. It's the same way with the young actresses. He's not sexually interested in them—his type never is, because living a rigidly orthodox family life is part of the effort towards respectability. He's backing them to 'pay his debt to society'—in other words, they're talismans to keep him out of jail."

"It doesn't seem like a very satisfactory substitute."

"Of course it isn't," Joan had said. "The next thing he'll do is go in for direct public service—giving money to hospitals or something like that. You watch."

She had been right; within the year, Braun had announced the founding of an association for clearing the Detroit slum area where he had been born—the plainest kind of symbolic suicide: *Let's not have any more Abner Longmans Brauns born down here*. It depressed me to see it happen, for next on Joan's agenda for Braun was an entry into politics as a fighting liberal—a New Dealer twenty years too late. Since I'm mildly liberal myself when I'm off duty, I hated to think what Braun's career might tell me about my own motives, if I'd let it.

All of which had nothing to do with why I was prowling around the *Ludmilla*—or did it? I kept remembering Anderton's challenge: "You can't take such a gamble. There are eight and a half million lives riding on it—" That put it up into Braun's normal operating area, all right. The connection was still hazy, but on the grounds that any link might be useful, I phoned him.

He remembered me instantly; like most uneducated, power-driven men, he had a memory as good as any machine's.

"You never did send me that paper you was going to write," he said. His voice seemed absolutely unchanged, although he was in his seventies now. "You promised you would."

"Kids don't keep their promises as well as they should," I said. "But I've still got copies and I'll see to it that you get one, this time. Right now I need another favor—something right up your alley."

"CIA business?"

"Yes. I didn't know you knew I was with CIA."

Braun chuckled. "I still know a thing or two," he said. "What's the angle?"

"That I can't tell you over the phone. But it's the biggest gamble there ever was, and I think we need an expert. Can you come down to CIA's central headquarters right away?"

"Yeah, if it's that big. If it ain't, I got lots of business here, Andy. And I ain't going to be in town long. You're sure it's top stuff?"

"My word on it."

He was silent a moment. Then he said, "Andy, send me your paper."

"The paper? Sure, but—" Then I got it. I'd given him my word. "You'll get it," I said. "Thanks, Mr. Braun."

I called headquarters and sent a messenger to my apartment to look for one of those long-dusty blue folders with the legal-length sheets inside them, with orders to scorch it over to Braun without stopping to breathe more than once. Then I went back myself.

The atmosphere had changed. Anderton was sitting by the big desk, clenching his fists and sweating; his whole posture telegraphed his controlled helplessness. Cheyney was bent over a seismograph, echo-sounding for the egg through the river bottom. If that even had a prayer of working, I knew, he'd have had the trains of the Hudson &

Manhattan stopped; their rumbling course through their tubes would have blanked out any possible echo-pip from the egg.

"Wild goose chase?" Joan said, scanning my face.

"Not quite. I've got something, if I can just figure out what it is. Remember One-Shot Braun?"

"Yes. What's he got to do with it?"

"Nothing," I said. "But I want to bring him in. I don't think we'll lick this project before deadline without him."

"What good is a professional gambler on a job like this? He'll just get in the way."

I looked toward the television screen, which now showed an amorphous black mass, jutting up from a foundation of even deeper black. "Is that operation getting you anywhere?"

"Nothing's gotten us anywhere," Anderton interjected harshly. "We don't even know if that's the egg—the whole area is littered with crates. Harris, you've got to let me get that alert out!"

"Clark, how's the time going?"

Cheyney consulted the stopwatch. "Deadline in twenty-nine minutes," he said.

"All right, let's use those minutes. I'm beginning to see this thing a little clearer. Joan, what we've got here is a one-shot gamble; right?"

"In effect," she said cautiously.

"And it's my guess that we're never going to get the answer by diving for it—not in time, anyhow. Remember when the Navy lost a barge-load of shells in the harbor, back in '52? They scrabbled for them for a year and never pulled up a one; they finally had to warn the public that if it found anything funny-looking along the shore it shouldn't bang said object, or shake it either. We're better equipped than the Navy was then—but we're working against a deadline."

"If you'd admitted that earlier," Anderton said hoarsely, "we'd have half a million people out of the city by now. Maybe even a million."



"We haven't given up yet, colonel. The point is this, Joan: what we need is an inspired guess. Get anything from the prob series, Clark? I thought not. On a one-shot gamble of this kind, the 'laws' of chance are no good at all. For that matter, the so-called ESP experiments showed us long ago that even the way we construct random tables is full of holes—and that a man with a feeling for the essence of a gamble can make a monkey out of chance almost at will.

"And if there ever was such a man, Braun is it. That's why I asked him to come down here. I want him to look at that lump on the screen and—play a hunch."

"You're out of your mind," Anderton said.

A decorous knock spared me the trouble of having to deny, affirm or ignore the judgment. It was Braun; the messenger had been fast, and the gambler hadn't bothered to read what a college student had thought of him fifteen years ago. He came forward and held out his hand, while the others looked him over frankly.

He was impressive, all right. It would have been hard for a stranger to believe that he was aiming at respectability; to the eye, he was already there. He was tall and spare, and walked perfectly erect, not without spring despite his age. His clothing was as far from that of a gambler as you could have taken it by design: a black double-breasted suit with a thin vertical stripe, a gray silk tie with a pearl stickpin just barely large enough to be visible at all, a black Homburg; all perfectly fitted, all worn with proper casualness—one might almost say a formal casualness. It was only when he opened his mouth that One-Shot Braun was in the suit with him.

"I come over as soon as your runner got to me," he said. "What's the pitch, Andy?"

"Mr. Braun, this is Joan Hadamard, Clark Cheyney, Colonel Anderton. I'll be quick because we need speed now. A Polish ship has dropped something out in the harbor. We don't know what it is. It may be a hell-bomb, or it may be just somebody's old laundry. Obviously we've got to find out which—and we want you to tell us."

Braun's aristocratic eyebrows went up. "Me? Hell, Andy, I don't know nothing about things like that. I'm surprised with you. I thought CIA had all the brains it needed—ain't you got machines to tell you answers like that?"

I pointed silently to Joan, who had gone back to work the moment the introductions were over. She was still on the mike to the divers. She was saying: "What does it look like?"

"It's just a lump of something, Dr. Hadamard. Can't even tell its shape—it's buried too deeply in the mud." *Cloonk ... Oing, oing ...*

"Try the Geiger."

"We did. Nothing but background."

"Scintillation counter?"

"Nothing, Dr. Hadamard. Could be it's shielded."

"Let us do the guessing, Monig. All right, maybe it's got a clockwork fuse that didn't break with the impact. Or a gyroscopic fuse. Stick a stethoscope on it and see if you pick up a ticking or anything that sounds like a motor running."

There was a lag and I turned back to Braun. "As you can see, we're stymied. This is a long shot, Mr. Braun. One throw of the dice—one show-down hand. We've got to have an expert call it for us—somebody with a record of hits on long shots. That's why I called you."

"It's no good," he said. He took off the Homburg, took his handkerchief from his breast pocket, and wiped the hatband. "I can't do it."

"Why not?"

"It ain't my *kind* of thing," he said. "Look, I never in my life run odds on anything that made any difference. But this makes a difference. If I guess wrong—"

"Then we're all dead ducks. But why should you guess wrong? Your hunches have been working for sixty years now."

Braun wiped his face. "No. You don't get it. I wish you'd listen to me. Look, my wife and my kids are in the city. It ain't only my life, it's theirs, too. That's what I care about. That's why it's no good. On things that matter to me, *my hunches don't work*."

I was stunned, and so, I could see, were Joan and Cheyney. I suppose I should have guessed it, but it had never occurred to me.

"Ten minutes," Cheyney said.

I looked up at Braun. He was frightened, and again I was surprised without having any right to be. I tried to keep at least my voice calm.

"Please try it anyhow, Mr. Braun—as a favor. It's already too late to do it any other way. And if you guess wrong, the outcome won't be any worse than if you don't try at all."

"My kids," he whispered. I don't think he knew that he was speaking aloud. I waited.

Then his eyes seemed to come back to the present. "All right," he said. "I told you the truth, Andy. Remember that. So—is it a bomb or ain't it? That's what's up for grabs, right?"

I nodded. He closed his eyes. An unexpected stab of pure fright went down my back. Without the eyes, Braun's face was a death mask.

The water sounds and the irregular ticking of a Geiger counter seemed to spring out from the audio speaker, four times as loud as before. I could even hear the pen of the seismograph scribbling away, until I looked at the instrument and saw that Clark had stopped it, probably long ago.

Droplets of sweat began to form along Braun's forehead and his upper lip. The handkerchief remained crushed in his hand.

Anderton said, "Of all the fool—"

"Hush!" Joan said quietly.

Slowly, Braun opened his eyes. "All right," he said. "You guys wanted it this way. *I say it's a bomb.*" He stared at us for a moment more—and then, all at once, the Timkin bearing burst. Words poured out of it. "Now you guys do something, do your job like I did mine—get my wife and kids out of there—empty the city—do something, *do something!*"

Anderton was already grabbing for the phone. "You're right, Mr. Braun. If it isn't already too late—"

Cheyney shot out a hand and caught Anderton's telephone arm by the wrist. "Wait a minute," he said.

"What d'you mean, 'wait a minute'? Haven't you already shot enough time?"

Cheyney did not let go; instead, he looked inquiringly at Joan and said, "One minute, Joan. You might as well go ahead."

She nodded and spoke into the mike. "Monig, unscrew the cap."

"Unscrew the cap?" the audio squawked. "But Dr. Hadamard, if that sets it off—"

"It won't go off. That's the one thing you can be sure it won't do."

"What is this?" Anderton demanded. "And what's this deadline stuff, anyhow?"

"The cap's off," Monig reported. "We're getting plenty of radiation now. Just a minute — Yeah. Dr. Hadamard, it's a bomb, all right. But it hasn't got a fuse. Now how could they have made a fool mistake like that?"

"In other words, it's a dud," Joan said.

"That's right, a dud."

Now, at last, Braun wiped his face, which was quite gray. "I told you the truth," he said grimly. "My hunches don't work on stuff like this."

"But they do," I said. "I'm sorry we put you through the wringer—and you too, colonel—but we couldn't let an opportunity like this slip. It was too good a chance for us to test how our facilities would stand up in a real bomb-drop."

"A real drop?" Anderton said. "Are you trying to say that CIA staged this? You ought to be shot, the whole pack of you!"

"No, not exactly," I said. "The enemy's responsible for the drop, all right. We got word last month from our man in Gdynia that they were going to do it, and that the bomb would be on board the *Ludmilla*. As I say, it was too good an opportunity to miss. We wanted to find out just how long it would take us to figure out the nature of the bomb—which we didn't know in detail—after it was dropped here. So we had our people in Gdynia defuse the thing after it was put on board the ship, but otherwise leave it entirely alone.

"Actually, you see, your hunch was right on the button as far as it went. We didn't ask you whether or not that object was a live bomb. We asked whether it was a bomb or not. You said it was, and you were right."

The expression on Braun's face was exactly like the one he had worn while he had been searching for his decision—except that, since his eyes were open, I could see that it was directed at me. "If this was the old days," he said in an ice-cold voice, "I might of made the colonel's idea come true. I don't go for tricks like this, Andy."

"It was more than a trick," Clark put in. "You'll remember we had a deadline on the test, Mr. Braun. Obviously, in a real drop we wouldn't have all the time in the world to figure out what kind of a thing had been dropped. If we had still failed to establish that when the deadline ran out, we would have had to allow evacuation of the city, with all the attendant risk that that was exactly what the enemy wanted us to do."

"So?"

"So we failed the test," I said. "At one minute short of the deadline, Joan had the divers unscrew the cap. In a real drop that would have resulted in a detonation, if the bomb was real; we'd never risk it. That we did do it in the test was a concession of failure—an admission that our usual methods didn't come through for us in time.

"And that means that you were the only person who did come through, Mr. Braun. If a real bomb-drop ever comes, we're going to have to have you here, as an active part of our investigation. Your intuition for the one-shot gamble was the one thing that bailed us out this time. Next time it may save eight million lives."

There was quite a long silence. All of us, Anderton included, watched Braun intently, but his impassive face failed to show any trace of how his thoughts were running.

When he did speak at last, what he said must have seemed insanely irrelevant to Anderton, and maybe to Cheyney too. And perhaps it meant nothing more to Joan than the final clinical note in a case history.

"It's funny," he said, "I was thinking of running for Congress next year from my district. But maybe this is more important."

It was, I believe, the sigh of a man at peace with himself.



Transcriber's Note:

This etext was produced from *Astounding Science Fiction* August 1955. Extensive research did not uncover any evidence that the U.S. copyright on this publication was renewed. Minor spelling and typographical errors have been corrected without note.

*** END OF THE PROJECT GUTENBERG EBOOK ONE-SHOT ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.